

18NWCV00084 18NWCV00084

County: los-angeles

Division: Civil Law and Motion

Department: L

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Case Number: 18NWCV00084 Hearing Date: August 25, 2026 Dept: L

Plaintiffs Josephine L.

Ellinger, Trustee of the John F. and Josephine L. Ellinger Living Trust, and
Launch Investments, LLC's Motion to Enforce Settlement is GRANTED.

Plaintiffs to give notice.

Background

This is a collections action. On

November 14, 2018, Plaintiffs Josephine L. Ellinger, Trustee of the John F. and Josephine L. Ellinger Living Trust, and Launch Investments, LLC ("Plaintiffs") filed this action against Defendants ANR TurtleRock, LLC, Agustin Nava Rodriguez, George Anthony Jordan, (collectively, "Defendants") and Does 1 to 50. On March 18, 2019, Plaintiffs filed the First Amended Complaint (FAC). This matter arises about of several loans memorialized by promissory notes executed between the parties from 2014 to 2016.

The parties attended a private mediation, which resulted in a formal written settlement agreement ("Settlement Agreement") executed on June 23, 2021. (Von Esch IV Decl., ¶ 4, Exh. 1.) According to its terms, the Court retained jurisdiction to enforce the Settlement Agreement pursuant to Code of Civil Procedure section 664.6. (Von Esch IV Decl., ¶ 5.) The parties also filed a Stipulation and Order providing that the Court retained jurisdiction, which the Court signed on July 2, 2021. (Von Esch IV Decl., ¶ 6, Exh. 2.)

On July 23, 2021, Plaintiffs
filed a Notice of Settlement of Entire Case.

On April 7, 2022, Plaintiffs
filed a Request for Dismissal With Prejudice as to Entire Action of All Parties
and All Causes of Action.

Plaintiffs now move to enforce
the Settlement Agreement.

Legal Standard

Code of Civil Procedure section 664.6 provides the
following:

“(a) If parties to pending
litigation stipulate, in a writing signed by the parties outside of the
presence of the court or orally before the court, for settlement of the case,
or part thereof, the court, upon motion, may enter judgment pursuant to the
terms of the settlement. If the parties to the settlement agreement or their
counsel stipulate in writing or orally before the court, the court may dismiss
the case as to the settling parties without prejudice and retain jurisdiction
over the parties to enforce the settlement until performance in full of the
terms of the settlement.

(b) For purposes of this section, a
writing is signed by a party if it is signed by any of the following:

(1) The party.

(2) An attorney who represents the
party.

(3) If an insurer is defending and
indemnifying a party to the action, an agent who is authorized in writing by
the insurer to sign on the party's behalf.”

(Code Civ. Proc., § 664.6, subd.

(a).)

Discussion

Plaintiffs now move to enforce

the Settlement Agreements pursuant to Code of Civil Procedure section 664.6. The Settlement Agreement contains an express term indicating that the Court retained jurisdiction over its enforcement. (Von Esch IV Decl., ¶ 4, Exh. 1, § 5.)

The Settlement Agreement provides

that Defendants shall pay Plaintiffs the sum total of \$710,000.00 ("Settlement Sum"), pursuant to a payment schedule described as follows:

a.

Percent of Retained Profits: Six Percent (6%) of profits retained by DEFENDANTS on Property Sales, to be paid as they are retained:

b.

Initial Payment: \$125,000 (One Hundred Twenty-Five Thousand Dollars and Zero Cents), less the sum of any payment made pursuant to Part 2a above, within 30 days of this signed settlement agreement.

c.

Installment Payment #1: \$50,000 (Fifty Thousand Dollars and Zero Cents), less the sum of any payments made pursuant to Part 2a above, within 120 days of this signed settlement agreement;

d.

Installment Payment #2: \$155,000 (One Hundred Fifty-Five Thousand Dollars and Zero Cents) (i.e., the balance (remainder) of \$330,000 less the sums of Parts 2b and 2c above) less the sum of any payments made pursuant to Part 2a above, by midnight on December 31, 2021;

e.

Monthly Payments to Satisfy Settlement Sum

Balance: Beginning February 1, 2022, \$13,000.00 (Thirteen Thousand Dollars and Zero Cents) paid monthly, plus any amounts pursuant to Part 2a above (i.e. Six Percent (6%) of profits retained by DEFENDANTS ON Property Sales), until the Settlement Sum is paid in full.

f.

All payments shall be made payable to "Von Esch

Law Group Attorney Client Trust Account", counsel for Plaintiffs, Tax Identification Number XX-XXXXXX (redacted for privacy).

g.

Once paid in full, payment of the Settlement Sum will be in full and complete settlement of the claims between the Parties arising from the ACTION.

h.

Payment Default: In the event that DEFENDANTS default by making timely payments as set forth in this Agreements, DEFENDANTS stipulate to entry of judgment in PLAINTIFFS favor in the amount of \$710,000 (Seven Hundred Thousand Dollars and Zero Cents) less any payments that DEFENDANTS have paid.

(Von Esch IV Decl., ¶¶ 4, 6, Exh. 1, § 2.)

Plaintiffs

contend that Defendants made payments pursuant to the payment schedule up until December 1, 2022. (Von Esch IV Decl., ¶ 6.) The total sum of the payment is \$457,305.03, and thus, the remaining principal amount due and owing is \$252,694.97. (Ibid.) Plaintiffs have made numerous demands to Defendants for payment of the outstanding sums. (Von Esch IV Decl., ¶ 7, Exh. 4.)

Plaintiffs

further request prejudgment interest in the amount of \$42,022.61, calculated as follows: \$25,269.49 at 10% annum per year = \$69.23 per day multiplied by 607 day (July 1, 2024 (alleged accrual date) to February 28, 2026 (date this Motion was prepared)) = \$42,022.61.

Plaintiffs

further requests at least \$4,560.00 in attorney's fees, which are provided for in the Settlement Agreement. (Von Esch IV Decl., ¶¶ 4, 8, Exh. 1, § 13.)

In opposition,

Defendants assert that Plaintiffs failed to credit 14 payments made pursuant to the payment schedule. Defendants' ledger indicates that Defendants paid \$642,305.03 toward the Settlement Sum, leaving a remaining balance due of \$67,694.97. (Jordan Decl., ¶¶ 4-7, Exhs. B-C.) Defendants do not dispute that the last payment was

made on January 1, 2024, and that \$67,694.97 remains due and owing. (Jordan Decl., ¶ 8.)

Defendants

further argue that Plaintiffs are not entitled to prejudgment interest because the Settlement Agreement contained no explicit term providing for such interest. Rather, the Settlement Agreement states that Defendants shall pay \$13,000.00 monthly, beginning February 1, 2022, “until the Settlement Sum is paid in full.” (Jordan Decl., ¶ 3, Exh. A, § 2.) Because there was no set deadline for payment, there is no July 1, 2024 accrual date as Plaintiffs suggest.

In reply,

Plaintiffs concede that, after an accounting of Defendants’ payments, the amount due as of date is \$67,694.97. Plaintiffs argue that judgment should entered in that amount. Plaintiffs no longer seek prejudgment interest. Plaintiffs only seek \$5,010.00 in attorney’s fees and costs. (Luu Supp. Decl., ¶¶ 2-10.)

The Court finds

that Defendants are currently in default of the Settlement Agreement, section 2(h), where Defendants halted timely payments on January 1, 2024. (See Jordan Decl., ¶ 5, Exh. B.) It is undisputed that \$67,694.97 remains due and owing to Plaintiffs.

Defendants do

not object to Plaintiffs’ entitlement to attorney’s fees and costs in relation to this Motion, or the amount of such fees and costs incurred. The Court thus awards \$5,010.00 to Plaintiffs for fees and costs.

Accordingly,

Plaintiffs’ Motion to Enforce Settlement is granted.

Plaintiffs are

ordered to file a revised Proposed Order for the Court’s signing.